

An Act

ENROLLED HOUSE
BILL NO. 3981

By: Caldwell (Trey), Bashore,
and Moore of the House

and

Gollihare of the Senate

An Act relating to district attorneys; creating the District Attorney Locality Incentive Program Act; providing short title; defining terms; authorizing the District Attorneys Council to make certain incentive payments under certain circumstances; providing minimum requirements to receive incentive payments; requiring recipients to satisfy certain conditions; providing for selection committee for jurisdiction participation; providing factors for program participation; construing provisions; creating the District Attorney Locality Incentive Program Revolving Fund; specifying source of fund; providing for expenditures; providing purpose of fund; providing for codification; and providing an effective date.

SUBJECT: District attorneys

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 215.43a of Title 19, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "District Attorney Locality Incentive Program Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 215.43b of Title 19, unless there is created a duplication in numbering, reads as follows:

As used in the District Attorney Locality Incentive Program:

1. "Eligible employee" means a full-time prosecutor of a district attorney's office serving in a designed high-need locality.

2. "Service obligation" means the period of continuous service required to earn an incentive payment under this act.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 215.43c of Title 19, unless there is created a duplication in numbering, reads as follows:

A. The District Attorneys Council, subject to availability of funding, may provide financial incentive payments to an eligible employee serving in a designated high-need locality.

B. Incentive payments made pursuant to this section shall not exceed a cumulative total of Fifty Thousand Dollars (\$50,000.00) per eligible employee during the initial five-year incentive period.

C. Incentive payments may be structured and disbursed at intervals determined by the administering committee, including, but not limited to, payments made upon completion of specified years of service.

D. Upon completion of the initial five-year incentive period, an eligible employee may receive additional incentive payments not to exceed Ten Thousand Dollars (\$10,000.00) for each additional two-year period of continued service in a qualifying locality, subject to availability of funds and continued eligibility.

E. Incentive payments authorized by this section may be made only to the extent funds are available and shall be approved in the manner prescribed by the administering committee. No employee shall have vested right to receive an incentive payment or to receive the maximum amount authorized by this act.

SECTION 4. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 215.43d of Title 19, unless there is created a duplication in numbering, reads as follows:

A. An eligible employee who receives an incentive payment pursuant to this act shall be required to complete the corresponding service obligation associated with the payment.

B. If an eligible employee terminates service in a designated high-need locality prior to satisfying the required service obligation, the employee shall be required to reimburse the payor entity for the incentive amount received.

C. If the employee completes less than the required service period for the incentive payment received, reimbursement by the employee shall be made on a pro rata basis, calculated according to the portion of the service obligation completed.

SECTION 5. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 215.43e of Title 19, unless there is created a duplication in numbering, reads as follows:

A. Eligibility for participation in the District Attorney Locality Incentive Program shall be determined by a committee composed of representatives of the district attorneys, in coordination with the District Attorneys Council.

B. The committee shall designate high-need localities and determine incentive amounts based on factors including, but not limited to:

1. Population size;
2. District hub status;
3. Remoteness or rural characteristics;
4. Length of vacancy or turnover rates;
5. Distance to an institution of higher learning; and

6. Other recruitment and retention considerations identified by the committee.

C. The committee shall establish policies and procedures governing:

1. Application and approval process;
2. Documentation requirements;
3. Incentive schedules and payment timing; and

4. Enforcement of service obligations and reimbursement requirements.

SECTION 6. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 215.43f of Title 19, unless there is created a duplication in numbering, reads as follows:

A. Eligible employees serving in designated high-need localities at the time the District Attorney Locality Incentive Program becomes effective shall be eligible to participate in the Program.

B. For purpose of incentive eligibility and administration, all participating employees, regardless of prior length of service, shall begin the initial five-year incentive period concurrently upon designation of the Program.

SECTION 7. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 215.43g of Title 19, unless there is created a duplication in numbering, reads as follows:

Nothing in this section shall be construed to create a vested right to an incentive payment. Incentive payments are subject to availability of funds and continued eligibility as determined by the administering committee.

SECTION 8. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 215.43h of Title 19, unless there is created a duplication in numbering, reads as follows:

There is hereby created in the State Treasury a revolving fund for the District Attorneys Council to be designated the "District Attorney Locality Incentive Program Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies directed for deposit to the fund by law. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the District Attorneys Council for the purpose of funding the District Attorney Locality Incentive Program. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

SECTION 9. This act shall become effective November 1, 2026.

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 27th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____